

FEB 6 1997



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11575
(FIRST REVISION)

EXPIRATION DATE: DECEMBER 31, 1997
See Appendix A for PTE Expiration
date(s)

1. GRANTEES:

- a. Chem-Nuclear Systems, Inc., Columbia, South Carolina;
- b. Persons offering for transportation shipments of Class 7 (radioactive) materials for processing or disposal at Chem-Nuclear's facilities located in Barnwell, SC or in Klingston, TN; and
- c. Persons offering for transportation shipments of Class 7 (radioactive) material to **processing or disposal facilities** who have been granted party status in accordance with paragraph 8(c).

2. PURPOSE AND LIMITATION: This exemption provides relief from certain shipping paper requirements for shipments of Low Level Radioactive Waste (LLRW) being transported in commerce. This exemption provides no relief from any regulation other than as specifically stated herein.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.301(c) and 172.201(a) (4).

5. BASIS: This exemption is based on the application of Chem-Nuclear Systems, Inc. dated October 26, 1995 with supplemental information dated January 3, 1996, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, low specific activity (LSA), n.o.s.	7	UN2912	N/A
Radioactive material, surface contaminated objects (SCO), n.o.s.	7	UN2913	N/A
Radioactive material, fissile, n.o.s.	7	UN2918	N/A
Radioactive material, n.o.s.	7	UN2982	N/A
Radioactive material, special form, n.o.s.	7	UN2974	N/A
Radioactive material, excepted package-empty packaging	7	UN2910	N/A
Radioactive material, excepted package-limited quantity of material	7	UN2910	N/A
Radioactive material, excepted package-articles manufactured from natural or depleted uranium or natural thorium.	7	UN2910	N/A
Radioactive material, excepted package-instruments or articles	7	UN2910	N/A
Thorium metal, pyrophoric	7	UN2975	N/A
Thorium nitrate, solid	7	UN2976	N/A
Uranyl nitrate, solid	7	UN2981	N/A
Uranium metal, pyrophoric	7	UN2979	N/A

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - Packagings must satisfy the applicable requirements contained in 49 CFR Parts 171 - 180.
- b. SHIPPING DOCUMENTS - The requirement in 172.201(a)(4) to have the additional detailed descriptive information of 172.203(d) following each basic description on the shipping document (manifest) is waived. The additional descriptive information required by 172.203(d) must be shown on pages attached to the first page of the manifest which lists each basic description (shipping name, hazard class, UN ID number) for all packages in the shipment.

8. SPECIAL PROVISIONS:

a. Chem-Nuclear Systems, Inc. shall provide a copy of this exemption to all their customers who offer LLRW to Chem-Nuclear's facilities located in Barnwell, SC and Klingston, TN for processing or disposal. Chem-Nuclear Systems, Inc. shall maintain a list of those persons to whom the exemption has been provided, and that list shall be provided to DOT authorized officials upon request.

b. Prior to a person offering shipments to Chem-Nuclear facilities identified in paragraph 8(a) with shipping documents authorized under this exemption, a person must have on file a copy of the Chem-Nuclear radioactive waste manifest. If persons shipping to Chem-Nuclear use a manifest other than the Chem-Nuclear manifest, they must provide a copy to Chem-Nuclear and receive from Chem-Nuclear a notice that the alternative manifest is acceptable.

c. Each processing or disposal facility wishing to use this exemption, other than Chem-Nuclear Systems, Inc., shall submit an application to the Associate Administrator for Hazardous Materials Safety requesting party status in accordance with 49 CFR 107.111. (It should be noted that this process takes approximately 45 - 60 days to complete.) If granted party status, they shall review manifests and maintain records as does Chem-Nuclear in accordance with paragraph 8(a) and (b).

d. This exemption will not be extended beyond March 1, 1998 since the Nuclear Regulatory Commission's Uniform Low-Level Radioactive Waste Manifest, which was published as a final rule in the Federal Register on March 27, 1995 and, required on March 1, 1998, conforms to the requirements of 49 CFR Part 172, Subpart C.

e. Shippers using this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

f. Each person offering shipments under this exemption must maintain a copy of this exemption at each facility from which such offering occurs and it must be made available to authorized officials upon request.

g. MARKING -

(i) Each hazardous waste manifest prepared under the provisions of this exemption shall be clearly marked on each page DOT-E 11575.

(ii) The requirement of 49 CFR 172.301(c) to mark the exemption number on the outside of each package offered for transport under an exemption is waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, and cargo only aircraft.

10. MODAL REQUIREMENTS:

a. No modal specific requirements are required by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for *Alan I. Roberts*
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 6 1997

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA, FRA, USCG, and FAA